

25SMCV01717 25SMCV01717

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C07%2F14%2F2026

Source SHA-256: 5490dc0b14ff5e7207e0d9f21af2032424c8c4001353c62c09357acc74f1aee9

Case Number: 25SMCV01717 Hearing Date: July 14, 2026 Dept: N

TENTATIVE RULING

Defendants Daniel Kohengadol and Aliza 26 LLC's Motion to Quash Deposition Subpoenas for Consumer Records of Defendant Daniel Kohengadol is GRANTED in its entirety.

Defendants Daniel Kohengadol and Aliza 26 LLC to give notice.

REASONING

Defendants Daniel Kohengadol and Aliza 26 LLC ("Defendants") move the Court for an order quashing the deposition subpoena for production of business records served by Plaintiff Justin Pagano ("Plaintiff") on third party Los Angeles Housing Department ("LAHD") for purported consumer records pertaining to Defendant Kohengadol and other third-party tenants. Defendants argue that the subpoena seeks personal information without serving a Notice to Consumer, it is not reasonably particularized, and it seeks irrelevant documents in a fishing expedition in search of character evidence.

If a subpoena requires the production of documents, the Court "may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).)

The subject subpoena seeks the following: (1) Any documents related to any complaint filed by a tenant at the property from January 1, 2022 to present; (2) Any documents showing communications between LAHD and any person related to any complaint filed by a tenant at the property from January 1, 2022 to present; (3) Any documents showing communications between LAHD and Daniel Kohengadol, related to the property, from January 1, 2022 to present; (4) Any documents showing communications between LAHD and any person related to any Systematic Code Enforcement Program inspections conducted at the property from January 1, 2022 to present; and (5) Any documents relating to the property from 2022 to present. (Mot., Ye Decl. ¶ 4, Ex. A.) Plaintiff contends he is entitled to these records because the documents can be subject to a protective order to keep information confidential, there is no privacy interest sufficient to quash production, the records sought are not "consumer records" requiring a notice, and the subpoena is not overbroad.

As a threshold issue, Defendants argue that the subject subpoena is invalid because Plaintiff failed to serve a Notice to Consumer on Defendant Kohengadol and other third-party tenants prior to serving the subpoena. Code of Civil Procedure section 1985.3, subdivision (b), provides that "[p]rior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve or cause to be served on the consumer whose records are being sought

a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena, if any, and of the notice described in subdivision (e), and proof of service as indicated in paragraph (1) of subdivision (c),” and the statute then describes the required methods of service. Code of Civil Procedure section 1798.3, subdivision (a), make clear that the Notice to Consumer requirement applies to subpoenas directed to “a state or local agency,” defines the protected “consumer” to include “any other natural person,” and the statute incorporates Civil Code section 1798.3 as it broadly defines “personal information” to include information that “identifies or describes an individual” and “statements made by, or attributed to, the individual.”

Plaintiff attempts to distinguish his subpoena by arguing that the records sought are not similar to personnel or medical files, but that does not make the notice requirement invalid. Thus, because Plaintiff failed to properly serve a Notice to Consumer, Defendants Daniel Kohengadol and Aliza 26 LLC’s Motion to Quash Deposition Subpoenas for Consumer Records of Defendant Daniel Kohengadol is GRANTED in its entirety. The Court will not opine as to whether the subpoena was reasonably particularized or seeks irrelevant information.